

STATE OF NEW YORK

4878--C

2025-2026 Regular Sessions

IN ASSEMBLY

February 7, 2025

Introduced by M. of A. TAPIA, REYES, MAMDANI, LEE, EPSTEIN, RAJKUMAR, TAYLOR, WEPRIN, ROSENTHAL, WOERNER, LEVENBERG, STECK, O'PHARROW, COLTON, DAVILA, BURROUGHS, SHIMSKY, GONZALEZ-ROJAS, BURDICK, PEOPLES-STOKES, LUNSFORD, FORREST, KAY, ALVAREZ, SIMON -- read once and referred to the Committee on Mental Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to the establishment of mental health clubhouses

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The mental hygiene law is amended by adding a new section 7.49 to read as follows:

§ 7.49 Mental health clubhouses.

(a) Definitions. For the purposes of this section, the term "mental health clubhouse" or "clubhouse" means a facility that:

1. is accredited or is in the process of becoming accredited, by a recognized body or bodies approved by the office;

2. addresses psychosocial deficits and social determinants of health;

3. uses a therapeutic approach that emphasizes purposeful engagement, relationship development, and mutual support for people with serious mental illness;

4. has members and program staff work side by side to build and manage a non-clinical therapeutic community;

5. offers members a community-based rehabilitative environment that both addresses psychosocial needs of people living with serious mental

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD08603-08-5

1 illness and provides structures that offer support in natural, community
2 environments;

3 6. offers support services for employment, education, health care,
4 housing, and other services to broadly address health-related social
5 care needs;

6 7. is an essential part of the continuum of care and works in tandem
7 with other medical and behavioral health services;

8 8. relies on the restorative power of work and work-mediated relation-
9 ships to build a firm foundation for growth and individual achievement
10 for members;

11 9. emphasizes strengths-based teamwork and opportunities to contribute
12 to operations through a work-ordered day; and

13 10. offers social and community-based recreational opportunities to
14 contribute to a member's path and success in recovery.

15 (b) Mental health clubhouses; establishment. 1. Clubhouses shall be
16 established within reasonable proximity to public transportation, if
17 practicable. If feasible and within available resources, virtual club-
18 house programming shall be implemented by an accredited clubhouse to
19 ensure accessibility to clubhouse support services in rural areas or
20 other parts of the state without access to a physical clubhouse.

21 2. The office shall develop a statewide implementation plan through
22 technical advising and consultation with established clubhouses to
23 assist with the accreditation process for any clubhouse in the state and
24 with implementation of the provisions under this section within one year
25 of the effective date of this article.

26 (c) Operational standards and core services. Membership of clubhouses
27 shall be:

28 1. voluntary, free of cost, and open to any individual with a history
29 of serious mental illness; and

30 2. shall receive accreditation or be in the process of becoming
31 accredited within the first three years of operation by a recognized
32 body.

33 (d) Oversight, compliance, and reporting. 1. Each clubhouse shall
34 submit a comprehensive report every two years to the office detailing:

35 (i) clubhouse active membership statistics and daily service utiliza-
36 tion;

37 (ii) employment placements and workforce development outcomes;

38 (iii) housing placements and homelessness prevention efforts; and

39 (iv) crisis intervention cases and emergency responses.

40 2. The office shall conduct biennial audits of all clubhouses to
41 ensure compliance with regulations promulgated by the office consistent
42 with this section and shall be research-based, utilizing information
43 from sources with expertise in the operation and the accreditation of a
44 clubhouse.

45 § 2. This act shall take effect on the ninetieth day after it shall
46 have become a law.